

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #15	CCRB Case #: 202102029	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 03/29/2021 4:15 PM	Location of Incident: 102nd Precinct stationhouse	Precinct: 102	18 Mo. SOL 9/29/2022	EO SOL 9/29/2022	
Date/Time CV Reported Wed, 03/31/2021 8:06 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 03/31/2021 8:06 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. DT3 Michael Klein	04732	925811	102 DET
4. PO Michael Cospito	12069	938269	102 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Leonardo Gomez	5216	930236	102 PCT
2. PO Carl Rennhack	21418	959923	102 DET
3. POM Daniel Oliver	14462	955273	102 PCT
4. POM Peter Schwille	27570	968792	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers detained § 87(2)(b)	
B. Officers	Abuse: Officers detained § 87(2)(b)	
C. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	
D.DT3 Michael Klein	Abuse: Detective Michael Klein failed to provide § 87(2)(b) with a business card.	
E.PO Michael Cospito	Abuse: Police Officer Michael Cospito failed to provide § 87(2)(b) with a business card.	
F.DT3 Michael Klein	Abuse: Detective Michael Klein threatened to arrest § 87(2)(b)	

Case Summary

On March 29, 2021, § 87(2)(b) filed this complaint with IAB via telephone. On April 7, 2021, the complaint was forwarded to the CCRB via IAB log #2021-7707. On March 30, 2021, § 87(2)(b) also filed a duplicate complaint with the CCRB via the website.

At approximately 3:15 p.m. on March 29, 2021, an individual attempted to shoot § 87(2)(b)'s nephew, § 87(2)(b) in front of § 87(2)(b) in Queens. § 87(2)(b)'s girlfriend, § 87(2)(b) was with him at the time. § 87(2)(b) did not witness the attempted shooting. Neither § 87(2)(b) nor § 87(2)(b) was injured in the shooting. Officers from the 102nd Precinct responded to the shooting and transported § 87(2)(b) and § 87(2)(b) to the 102nd Precinct stationhouse. There, they allegedly detained § 87(2)(b) and § 87(2)(b) against their will (**Allegations A and B: Abuse of Authority – Other, § 87(2)(g)**). While interviewing § 87(2)(b) about the shooting, an officer allegedly called him a “piece of crap” and told him that the police were going to pick him up in a body bag someday (**Allegation C: Discourtesy – Word, § 87(2)(g)**).

While at the stationhouse, § 87(2)(b) called § 87(2)(b)'s mother and § 87(2)(b)'s sister, to let her know where she and § 87(2)(b) were. § 87(2)(b) and § 87(2)(b) went to the stationhouse to find out what was happening. Police Officer Carl Rennhack of the 102nd Precinct Detective Squad informed them that § 87(2)(b) and § 87(2)(b) were being interviewed about the shooting. At approximately 7:00 p.m., Detective Michael Klein and Police Officer Michael Cospito of the 102nd Precinct Detective Squad escorted § 87(2)(b) out of the stationhouse to the parking lot. § 87(2)(b) allegedly asked both officers for their business cards. The officers allegedly failed to provide them (**Allegation D and E: Abuse of Authority – Failure to provide RTKA card, § 87(2)(g)**). § 87(2)(b) and § 87(2)(b) followed § 87(2)(b) and the officers to the parking lot and asked what they were doing with her. § 87(2)(b), § 87(2)(f)

§ 87(2)(b) Detective Klein then told § 87(2)(b) to go back into the stationhouse (**Subsumed in Allegation B**).

Several minutes later, the officers escorted § 87(2)(b) to the waiting area, where she joined § 87(2)(b) and § 87(2)(b) asked both officers for their business cards again, but the officers failed to provide cards (**Subsumed in Allegations D and E**). Detective Klein threatened to arrest § 87(2)(b) (**Allegation F: Abuse of Authority – Threat of arrest, § 87(2)(g)**).

§ 87(2)(b) came to the waiting area and joined his family later that night. When he was released, Police Officer Michael Rizzo of the 102nd Precinct issued him a summons for having allegedly displayed a knife in public earlier that night (Board Review #01). No other arrests were made or summonses issued that night.

The investigation obtained a cell phone video recorded by § 87(2)(b). It is attached in IA #71 and summarized in IA #72 (Board Review #02-03). The investigation also obtained video footage from the 102nd Precinct stationhouse. It is attached in IAs #47 and summarized in IA #73 (Board Review #04-05). No other footage was found from this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers detained § 87(2)(b)

Allegation (B) Abuse of Authority: Officers detained § 87(2)(b)

Allegation (C) Discourtesy: An officer spoke discourteously to § 87(2)(b)

On April 8, 2021, § 87(2)(b) and § 87(2)(b) were interviewed by the CCRB. On November 1, 2021, Police Officer Carl Rennhack was interviewed at the CCRB. On April 11, 2022, Detective Klein and Police Officer Cospito were interviewed at the CCRB. The investigation was unable to obtain statements from § 87(2)(b) or § 87(2)(b) (Board Review #06).

It is undisputed that on March 29, 2021, an individual fired a gun at § 87(2)(b) in front of § 87(2)(b) in Queens. § 87(2)(b) also witnessed the incident. Nobody was injured in the shooting. Several officers from the 102nd Precinct and the 102nd Precinct Detective Squad, including Detective Klein and Police Officer Cospito, responded to the shooting. Officers drove § 87(2)(b) and § 87(2)(b) to the 102nd Precinct stationhouse and interviewed them about the shooting. § 87(2)(b) and § 87(2)(b) who did not witness the shooting, went to the stationhouse to wait for § 87(2)(b) and § 87(2)(b). Detective Klein and Police Officer Cospito walked § 87(2)(b) out to the stationhouse's parking lot at approximately 7:00 p.m. § 87(2)(b) followed them to the parking lot and told them to let § 87(2)(b) go. Detective Klein told § 87(2)(b) to go back inside. § 87(2)(b) did not say anything in response. The officers then walked her back to the Detective Squad's office. A few minutes later, § 87(2)(b) walked back downstairs and left with § 87(2)(b) and § 87(2)(b). At approximately 8:00 p.m., § 87(2)(b) also left the Detective Squad's offices.

§ 87(2)(b) and § 87(2)(b) both stated that § 87(2)(b) called § 87(2)(b) shortly after the shooting to report that she and § 87(2)(b) had been transported to the 102nd Precinct stationhouse. § 87(2)(b) further stated that once they arrived, § 87(2)(b) sent them text messages stating that the police were refusing to allow her or § 87(2)(b) to leave. § 87(2)(b) made no mention of § 87(2)(b) making this claim. Both § 87(2)(b) and § 87(2)(b) stated that later in the night, after § 87(2)(b) left the Detective Squad offices, he stated that the police had questioned him about several other incidents that were unrelated to the shooting earlier that day. § 87(2)(b) further stated that § 87(2)(b) told her that an officer had called him a "piece of crap" and told him that he would end up "in a body bag" someday.

§ 87(2)(b) and § 87(2)(b) were the only civilians who were involved in the conversations with the Detective Squad officers at the stationhouse. As such, they are the only civilians who can provide direct details of these conversations, such as whether they were held at the stationhouse against their wills or if an officer used discourteous language towards § 87(2)(b). Between April 26, 2021 and May 14, 2021, five telephone calls were made and three emails were sent to § 87(2)(b) and § 87(2)(b) in an effort to obtain statements from them. Messages were left on each call and the emails were delivered normally. § 87(2)(g)

Allegation (D) Abuse of Authority: Detective Michael Klein failed to provide § 87(2)(b) with a business card.

Allegation (E) Abuse of Authority: Police Officer Michael Cospito failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) stated that when Detective Klein and Police Officer Cospito escorted § 87(2)(b) to

the parking lot, he asked both of them for their business cards. Detective Klein replied that they did not have their business cards with them. The officers then walked § 87(2)(b) back upstairs to the Detective Squad office and returned with her several minutes later. § 87(2)(b) asked them again for their cards. Detective Klein said again that they did not have business cards with them. § 87(2)(b) felt that the officers should have retrieved copies of their business cards for him when they went back to their office.

§ 87(2)(b) stated that § 87(2)(b) asked both Detective Klein and Police Officer Cospito for their business cards. She did not recall if he made the request during their first or second conversation with § 87(2)(b). She did not recall how either officer responded to the request but noted that she and § 87(2)(b) did not ultimately receive business cards from either officer.

Neither Detective Klein nor Police Officer Cospito recalled hearing § 87(2)(b) ask for their business cards during their interactions. They did not recall telling § 87(2)(b) that they did not have cards with them. They did not recall refusing to provide their business cards to § 87(2)(b).

Police Officer Rennhack was not party to the other officers' conversation with § 87(2)(b). He was not aware of § 87(2)(b) asking any officers for their business cards, or of any officers telling § 87(2)(b) that they were not carrying cards.

Both of § 87(2)(b)'s conversations with Detective Klein and Police Officer Cospito are depicted in the stationhouse video footage (Board Review #04). Because the video has no sound, it is unclear what they say to each other. Neither officer is seen handing § 87(2)(b) any objects, including cards. § 87(2)(b)'s conversation with the officers inside the stationhouse is not recorded in the cell phone video he provided (Board Review #02).

Absent additional testimony or documentation, the investigation was unable to determine by a preponderance of the evidence either whether § 87(2)(b) asked the officers for their business cards, or whether the officers failed to provide their business cards. § 87(2)(g)

Allegation (F) Abuse of Authority: Detective Michael Klein threatened to arrest § 87(2)(b).

It is undisputed that Detective Klein threatened to arrest § 87(2)(b) during their second conversation. § 87(2)(b) made a video recording during this incident. § 87(2)(b) was not ultimately arrested.

§ 87(2)(b) stated that when Detective Klein and Police Officer Cospito brought § 87(2)(b) downstairs for the second time, Detective Klein told § 87(2)(b) "is not allowed to come back in here. If he does, I'm going to arrest him." § 87(2)(b) interpreted this remark to be directed towards him. Detective Klein did not state why § 87(2)(b) might be arrested.

§ 87(2)(b) stated that during the second conversation, § 87(2)(b) accused the officers of detaining § 87(2)(b) against his will. Detective Klein called § 87(2)(b) a "loudmouth." § 87(2)(b) then walked out of the building. Detective Klein turned to § 87(2)(b) and told her, "He better not come back in here or we're gonna keep him."

Detective Klein stated that when he first walked § 87(2)(b) downstairs, § 87(2)(b) started recording the officers on his cell phone. When they walked § 87(2)(b) out to the parking lot, § 87(2)(b) also went to the parking lot. He continued recording. § 87(2)(b) shouted at the officers,

accusing them of keeping § 87(2)(b) and § 87(2)(b) as hostages. Detective Klein told § 87(2)(b) to leave. He did so because he felt that § 87(2)(b) was acting in a disruptive manner. He also may have told § 87(2)(b) that he would be arrested if he did not comply and leave. Detective Klein explained that he could have arrested § 87(2)(b) for making a recording at the stationhouse, which is a criminal offense. He did not recall hearing any other officers threaten to arrest § 87(2)(b) for any reason.

Police Officer Cospito stated that after he and Detective Klein interviewed § 87(2)(b) and § 87(2)(b) they walked to the parking lot so they could drive back to the shooting location. He did not recall § 87(2)(b) being with them. § 87(2)(b) was in the waiting area as they walked out of the building. He shouted at them, accusing them of detaining § 87(2)(b) and § 87(2)(b). He appeared agitated and cursed at the officers. Police Officer Cospito did not recall any specific statements § 87(2)(b) made. He then took out a cell phone and started recording the officers. Both officers warned § 87(2)(b) that he was not allowed to record there and that he would be arrested if he continued to do so. Neither Police Officer Cospito nor any other officer threatened to arrest § 87(2)(b) for any other reasons. He did not recall having any further interactions with § 87(2)(b).

Police Officer Rennhack was not party to § 87(2)(b)'s conversations with Detective Klein and Police Officer Cospito. He was not aware of any officer threatening to arrest § 87(2)(b).

Stationhouse video footage is attached in IAs #47 (Board Review #04). The videos do not have any sound. One of the camera angles covers the civilian waiting area. At 0:44:15 into this recording, § 87(2)(b) enters the building and stands in the waiting area. At 0:58:10 into the recording, Detective Klein, Police Officer Cospito and § 87(2)(b) walk next to the waiting area. § 87(2)(b) appears to speak to them for a few moments. § 87(2)(b) and the officers then exit at the bottom of the frame. § 87(2)(b) walks out the front door. At 0:59:30 into the recording, § 87(2)(b) and the officers re-enter the bottom of the frame and then exit the left side of the frame. § 87(2)(b) walks back in through the front door and stands in the waiting area again. He is accompanied by § 87(2)(b). At 1:05:00 into the recording, Detective Klein and § 87(2)(b) walk back into frame. § 87(2)(b) enters the waiting area. § 87(2)(b) and Detective Klein appear to speak to each other. They gesture animatedly towards each other. At 1:05:40 into the recording, § 87(2)(b) and § 87(2)(b) leave. They are not seen again. § 87(2)(b) continues speaking to Detective Klein. At 1:08:05, Detective Klein exits the bottom of the frame. Police Officer Cospito enters from the left and follows Detective Klein out of the bottom of the frame. No further interaction is seen between them and the civilians. During § 87(2)(b)'s time on the camera, he is seen holding his cell phone up to his ear. He is not seen pointing it or extending it towards anybody.

§ 87(2)(b) provided cell phone footage that he recorded during the incident. It is attached in IA #71 (Board Review #02). It shows § 87(2)(b) speaking to Detective Klein by the entrance to the stationhouse's parking lot. Police Officer Cospito and § 87(2)(b) stand behind Detective Klein. § 87(2)(b) tells Detective Klein to release § 87(2)(b). Detective Klein turns to § 87(2)(b) and tells her to go back inside. The officers and § 87(2)(b) walk back into the stationhouse through a side door. § 87(2)(b) and § 87(2)(b) walk to the stationhouse's main entrance and walk inside. As he enters, an unidentified female voice tells him not to record. The video then ends. No officer is heard threatening to arrest him on this recording.

While Police Officer Cospito stated that he also threatened to arrest § 87(2)(b) the investigation determined that Detective Klein alone issued a threat. Detective Klein, § 87(2)(b) and § 87(2)(b) all stated that Detective Klein was the only other officer to issue a threat. § 87(2)(b)

explicitly stated that Police Officer Cospito did not speak to him during the incident. As such, Detective Klein alone has been identified as a subject officer.

The investigation determined that Detective Klein lacked sufficient legal justification to threaten § 87(2)(b) with arrest. In § 87(2)(b)'s and § 87(2)(b)'s accounts, the officers warned that § 87(2)(b) would be arrested if he stayed at the stationhouse but did not provide a specific reason why he would be arrested. Neither civilian account includes § 87(2)(b) engaging in obviously criminal behavior at the stationhouse.

Detective Klein and Police Officer Cospito stated that they told § 87(2)(b) he would be arrested because he was making a video recording inside the stationhouse. They denied that there was reason to arrest him for any other offenses. While § 87(2)(b) did make a video recording during this incident, it was made entirely outside the stationhouse. The stationhouse footage shows that § 87(2)(b) held a phone to his head while inside but does not show him holding out his camera or otherwise using it in a manner consistent with video recording. The recording § 87(2)(b) provided does not start until he is standing outside the stationhouse and ends when he walks back inside. None of it takes place inside the stationhouse.

§ 87(2)(b) did not make any video recordings while inside the stationhouse. § 87(2)(b), § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(b) stated that during their last conversation with Detective Klein and Police Officer Cospito, Detective Klein told § 87(2)(b) "Sit on your finger and rotate." § 87(2)(b) the victim of this allegation, made no mention of any officers making discourteous statement towards him during this incident. No such remark is recorded in any of the video footage. Therefore, a discourtesy (word) allegation has not been pleaded.
- § 87(2)(b) also stated that § 87(2)(b) asked Detective Klein and Police Officer Cospito for their names during their second conversation. § 87(2)(b) only mentioned asking the officers for their business cards. He made no mention of a separate request for any other part of their identifying information, such as their names. Therefore, refusal to provide name allegations have not been pleaded.

Civilian and Officer CCRB Histories

- § 87(2)(b)
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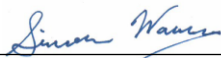
- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- § 87(2)(b) [REDACTED]
- Detective Klein has been a member of the service for twenty-two years and has been identified as a subject in two previous CCRB complaints and two allegations, neither of which was substantiated. § 87(2)(g) [REDACTED]
- Police Officer Cospito has been a member of the service for sixteen years and has been identified as a subject officer in one previous CCRB complaint and three allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of September 17, 2021, the NYC Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident.
- § 87(2)(b) [REDACTED]
- § 87(2)(b) [REDACTED]
- § 87(2)(b) [REDACTED]

Squad: 15

Investigator:	<u>Owen Godshall</u>	<u>SI Owen Godshall</u>	<u>4/19/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u></u>	<u>IM Simon Wang</u>	<u>04/22/22</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date